were disconcerting. First, there were about fifty other people at the party, and it was 'unnatural and unconscionable' that Gill would 'dare' to commit the offence in their presence.[18] Second, Mrs Bajaj's narrative was inconsistent with the story that she told her host Kapur and fellow guest Pathak, the joint director of the IB, immediately after the incident – that Gill had 'hit her', rather than slapped her on the bottom. The high court ascribed great weight to the fact that she failed to specify 'the part of the body'[19] – as though it was something that Bajaj would want to broadcast and disseminate widely. Third, the court stated that the Bajajs failed to justify the delay of eleven days in filing the police complaint and four months in filing the complaint with the magistrate,[20] ignoring that the police complaint was filed only after administrative measures proved futile, and that the complaint with the magistrate was filed when it became clear that the investigation was not being meaningfully pursued.

At this stage, it appeared that Rupan Deol Bajaj's fight for justice was over. The administration was against her. There were two high court decisions, both issued by her namesake judge, against her. The tide of opinion was squarely against her – in the eyes of the public at large, she was reckless at best, and a devious liar at worst. The most that she had got up to that stage was the offer of a private apology. The prospect of a criminal conviction (or for that matter, any criminal action) against Gill was nowhere on the horizon. Gill was 'the naughty hero who had committed a trivial lapse but who ought to be pardoned on the grounds of state security'.[21] In fact, he was awarded a Padma Shri shortly after the high court's decision. The Bajajs nevertheless played their last card, appealing the decision in the Supreme Court.

Both appeals (the appeal against the decision rejecting the disclosure of Ribeiro's report to the governor and the governor's order, and the appeal against the decision quashing the complaints) were consolidated and considered together by the Supreme Court. It took six years, or to be precise 2,327 days, after the Punjab and Haryana High Court's quashing decision for the Supreme Court to arrive at its decision. KTS continued to represent KPS, but the Bajajs were now represented by senior advocate Indira Jaising.